

Vimal Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 30 January 2024 · 2024:AHC:14567-DB · WRIT - C No. 44970 of 2023 · **Writ dismissed as infructuous after recovery withdrawn.**

HEADNOTE

Writ challenging recovery under a letter dated 24.06.2021 dismissed as infructuous. Counsel for respondent no. 4 stated on instructions that the recovery had already been withdrawn. No finding on whether the assessment followed the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Vimal Singh challenged, by writ, recovery sought under a letter dated 24 June 2021. On 5 January 2024 counsel for the electricity department sought time to check whether the assessment had followed the U.P. Electricity Supply Code, 2005 and to file the final assessment order, if already passed. The petition was adjourned to 18 January 2024. None appeared that day, and it was listed afresh for 30 January 2024. Counsel for respondent no. 4 then stated, on instructions, that the recovery against the petitioner had already been withdrawn.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

infructuous writ after withdrawal of recovery

HOLDING

The writ challenging recovery under a letter dated 24.06.2021 was dismissed as infructuous once counsel for respondent no. 4 stated on instructions that the recovery had already been withdrawn. The Court recorded no finding on compliance with the assessment procedure under the U.P. Electricity Supply Code, 2005. ¶ 3-5

PRINCIPLE TAGS

procedural-listing-no-construction

After two adjournments, the writ was dismissed as infructuous on the licensee's statement that the challenged recovery had been withdrawn. No Supply Code clause was construed. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ASSESSMENT FOLLOWED THE PROCEDURE IN THE U.P. ELECTRICITY SUPPLY CODE, 2005, AND WHETHER A FINAL ASSESSMENT ORDER HAD BEEN PASSED.

Raised by the electricity department on 5 January 2024; the writ was dismissed as infructuous on 30 January 2024 before any finding. ¶ 1